

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,
COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

**COMPLAINANT CHINA UNITED LINES, LTD.'S
MOTION FOR PROTECTIVE ORDER PRECLUDING RESPONDENT AMAZON.COM
SERVICES LLC'S JANUARY 6, 2026 RULE 143(b)(6) NOTICE OF VIDEOTAPED
DEPOSITION ON TOPIC NO. 4**

Complainant China United Lines, Ltd. ("CUL") respectfully moves, pursuant to 46 C.F.R. § 502.141 and Federal Rule of Civil Procedure ("FRCP") 26, for a Protective Order precluding Respondents Amazon.com Services LLC, Amazon Logistics, Inc. and Beijing Century Joyo Courier Services, LLC's ("Amazon") January 6, 2026 Rule 143(b)(6) Notice of Videotaped Deposition ("NOD") on Topic of Examination No. 4 ("Topic No. 4"), which seeks: "CUL's factual basis for any contention that Amazon engaged in any act of fraud or concealment with respect to CUL." Declaration of Bryce Cullinane ("Cullinane Decl."), ¶ 2, Ex. A, attached hereto as **Exhibit 1**. **To be clear, CUL is (in the spirit of cooperation and moving this case forward) producing its corporate designee to proceed with Amazon's desired corporate deposition of CUL's corporate designee on January 12, 2026. This Motion is limited to seeking a protective order on Topic No. 4 alone.**

I. INTRODUCTION

The deceit, concealment, and fraud Amazon engaged in has been discovered in Amazon's production of documents – documents that a corporate designee would not review – and CUL hopes to further uncover Amazon's fraud in the course of (1) upcoming depositions and by (2) moving to compel Amazon (to challenge its claim that almost every internal communication at Amazon regarding the decision to terminate its relationship with CUL "for cause" is cloaked by the attorney-client privilege). Thus far, the documents produced by Amazon have uncovered the following deceit and fraud:

1. **Amazon's approval of CUL's public use of Amazon's name is in writing.** On October 24, 2022, Amazon's Adam Baker attended a meeting with CUL in Long Beach where CUL hung a banner on one of its vessels, to be seen far and wide, saying "CULINES AND TRAPAC WELCOME AMAZON TEAM ABOARD." Mr. Baker not only had his picture taken in front of the banner, but he also emailed CUL stating "appreciate the banner." The picture of Mr. Baker and the banner using Amazon's name was emailed to Amazon's Becky Moore, who responded: "LOVE THESE PHOTOS!" and "We appreciate all you do for Amazon 😊." **CUL had every reason to believe that using Amazon's name *was not a breach of the written agreements* with Amazon because its senior leaders, Ms. Moore and Mr. Baker, emphasized their approval of the public use of Amazon's name and even thanked CUL for doing so.** Amazon conveniently omitted the picture of the banner and Mr. Baker from its letter claiming a

"Termination for Cause." Amazon said nothing about the October 2022 use of its name, until eight months later, when Amazon chose to use it to avoid its \$32 million obligation to CUL. CUL relied, to its detriment, on Amazon, and Amazon (concealing its intentions to terminate CUL for use of its name) clearly chose to deceive CUL.

2. **Only two outcomes:** While CUL and Amazon were discussing the contractual terms of their new relationship, in broad terms, Amazon made it clear that a potential end to the relationship could only involve two outcomes: Either the MQC would be fulfilled, or one side would need to pay liquidated damages. Amazon never indicated, in discussions with CUL, that it interpreted Section 7(2) of the MTA to mean that a *single* use of Amazon's name, publicly, meant that Amazon would not pay any liquidated damages to CUL, even if CUL fulfilled its service obligations and even if Amazon made the relationship well-known through its own social media account. Amazon fraudulently buried this term, and its unreasonable interpretation of this term, into the contract, as a kind of "get out of jail free" card.

3. **Amazon knew as of October 24, 2022 that CUL was publicly using Amazon's name.** As such, Amazon made the conscious decision to terminate its relationship with CUL for convenience, on April 1, 2023, when it knew that it possessed a right to terminate for cause. Amazon did not reserve any rights in its termination letter on April 1, 2023. Deceptively, and with its known superior bargaining power, Amazon chose to change its election.

4. **Leverage to avoid obligations:** Internal communications at Amazon make it clear that market price was the reason Amazon chose to end its relationship with CUL and that Amazon desired to use any negotiation tactic within its arsenal to reduce the \$32 million liquidated damaged owed to CUL. There is even an exchange internally at Amazon, on May 11, 2023, where they discuss "whether we are going to lean in to the disclosure point to create leverage." Far from honestly believing that CUL breached, Amazon's purpose was (and continues to be) leverage to avoid its obligations. Amazon itself advertised the CUL relationship, on WeChat, on July 4, 2022, rendering the confidentiality provisions of the contract with CUL null and void. It is deceitful to force CUL to sue Amazon for its contractually-owed \$32 million, when Amazon knows that CUL never breached any contract with Amazon.

5. **Similar contracts with non-disclosure terms:** It remains to be seen whether Amazon makes other vendors for Amazon enter into the same non-disclosure terms, and yet Amazon has not cancelled those relationships after those vendors use Amazon's name because they are financially advantageous to Amazon. Such a tactic could wreak havoc in the marine shipping industry, because Amazon will be able to avoid obligations in service contracts whenever it chooses. Such behavior would be clearly deceitful by Amazon because its true intentions are focused on price, not upon non-disclosure (as claimed). CUL intends to move to

compel based on Amazon's refusal to respond to relevant discovery requests on this issue.

As framed, Topic No. 4 exceeds the permissible scope of discovery before the Federal Maritime Commission ("FMC"). Courts have consistently held that discovery – particularly corporate deposition testimony – may not be used to force a party *to marshal its contentions and trial strategy through a corporate witness*. Especially here, where Amazon itself is in the best position to understand its own acts of fraud, deceit, and concealment, which are still be discovered by CUL. Absent a protective order, Topic No. 4 would improperly transform a corporate deposition into contention discovery seeking legal conclusions and unfairly prejudice CUL. Further, the NOD was improperly served less than seven (7) days before the Deposition.

II. LEGAL STANDARD

Under FMC Rule 502.141(j), "the Commission or presiding officer may, for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense." 46 C.F.R. § 502.141(j)(1); FRCP 26. "A party or any person from whom discovery is sought may move for a protective order in the court where the action is pending – or as an alternative on matters relating to a deposition, in the court for the district where the deposition will be taken." *Id.*

III. ARGUMENT

A party may properly resist a corporate deposition topic "on the grounds that the information sought is more appropriately discoverable through contention interrogatories" and/or expert discovery. *SmithKline Beecham Corp. v. Apotex Corp.*, No. 00-CV-1393, 2004 WL 739959, at *2 (E.D. Pa. Mar. 23, 2004). "A corporate representative deposition topic is an overbroad, inefficient, and unreasonable means of discovering an opponent's factual and legal basis for its claims." *Trs. of Bos. Univ. v. Everlight Elecs. Co.*, No. 12-CV-11935-PBS, 2014 WL 5786492, at *4–5 (D. Mass. Sept. 24, 2014). "Even under the present-day liberal discovery rules, [the corporation] is not required to have counsel 'marshal all of its factual proof' and prepare a witness

to be able to testify on a given defense or []claim." *Indep. Serv. Org. Antitrust Litig.*, 168 F.R.D. at 654. As Magistrate Judge Collings explained in *Fidelity Mgmt. & Research Co. v. Actuate Corp.*:

[I]t is not clear that a 30(b)(6) deposition is the best method for obtaining the information. Rather, it can be argued that contention interrogatories are a better vehicle. The reason is simple-complaints and answers, including affirmative defenses, are drafted by attorneys, and asking a 30(b)(6) witness, usually a nonlawyer, to answer this type of questions after being prepared in the manner of 30(b)(6) witnesses makes it extremely difficult to distinguish between "facts" (not protected) and the issue of why those facts have legal consequences, which usually has a work-product (lawyer's mental impressions) dimension. This problem is more acute since it is most likely that the lawyer was the source of the information which was provided to the 30(b)(6) witness so that he could answer the questions on behalf of the corporation and bind the corporation to those answers. And drawing the line between questions which seek to elicit facts and questions which will lead to a revelation of work-product matters can be difficult.

275 F.R.D. 63, 64 (D.Mass.2011) (internal citations omitted). The Presiding Officer should find that Topic 4 is not an appropriate topic for a Rule 143(b)(6) deposition.

A. Topic No. 4 is a Contention Interrogatory Posed as an Improper Deposition Topic

Federal courts have repeatedly recognized that discovery requests seeking a party's "basis" for claims function as *contention* discovery and are disfavored when posed through depositions rather than interrogatories. *See Ocean Network Express Pte. Ltd. and Ocean Network Express (north America) Inc.*, 2022 WL 1485900, at *2 (A.L.J. May 4, 2022) (quoting *Thorn EMI N. Am. v. Intel Corp.*, 936 F. Supp. 1186, 1191 (D. Del. Aug. 29, 1996) ("Many courts encourage parties to use 'contention' interrogatories to seek the legal contentions made by opposing parties and the factual bases for those legal contentions."); *see also Thorn*, 936 F. Supp. at 1191 ("The purpose of contention interrogatories . . . is to give each party sufficient notice of the opposing party's contentions at trial and an opportunity to respond to those contentions.") The preference for using interrogatories rather than depositions for contention discovery stems from practical considerations. As one court explained, "contention discovery will usually require the assistance

of a party's attorney," making contention depositions likely to "involve the deposition of a party's attorney, which is not favored." *BB&T Corp. v. U.S.*, 233 F.R.D. 447 (2006). Courts have emphasized that "until a party has first shown that the interrogatory process cannot be used, it may not seek to use depositions for contention discovery." *Id.*, see also *United States v. Taylor*, 166 F.R.D. 356, 363 (M.D.N.C.), *aff'd*, 166 F.R.D. 367 (M.D.N.C. 1996) (citing Fed.R.Civ.P. 33(c)) ("Some inquiries are better answered through contention interrogatories wherein the client can have the assistance of the attorney in answering complicated questions involving legal issues.").

Here, Topic 4 seeks exactly that – requiring CUL to compile, organize, and defend its fraud theory through a corporate witness, rather than through appropriate discovery mechanisms and expert testimony. See *Exxon Rsch. & Eng'g Co. v. United States*, 44 Fed. Cl. 597, 601 (1999) ("[T]he Court finds that contention interrogatories are more appropriate [because] . . . claim construction is a difficult issue to summarize for one deponent . . .").

B. Topic No. 4 is Unduly Burdensome and Disproportionate under FMC Rules

Preparing a corporate witness to testify regarding the "factual basis" for fraud and concealment would impose a substantial and disproportionate burden, particularly where discovery is ongoing. See *DDK Hotels, LLC v. Williams-Sonoma, Inc.*, No. 19 CV 226 (ILG) (CLP), 2022 WL 2702378, at *14 (E.D.N.Y. Feb. 11, 2022) ("The current request for 'all facts and circumstances' underlying the plaintiffs' claims is overly broad, encompasses every possible fact relevant to the litigation . . ."); see also *Wilmington Tr., Nat'l Ass'n v. Samcom 48 (DE) LLC*, No. 22CV2720RPKRLM, 2022 WL 17977499, at *3 (E.D.N.Y. Dec. 28, 2022) ("[T]his type of request is overly broad and encompasses *every possible fact* relevant to this litigation.") (internal citation omitted) (emphasis added).

Here, the case is no different. The phrasing of Topic 4 suggests that Amazon intends to seek testimony on the underlying circumstance for CUL's fraud claim. "That, in essence is asking the designee to marshal the evidence and is thus improper." *DDK Hotels, LLC*, 2022 WL 2702378 at *14. Such a request is particularly inappropriate where, as here, the corporate representative would be asked for its views on its allegations in the complaint that would involve looking at

Amazon's productions. *See Conservation L. Found., Inc. v. Shell Oil Co.*, No. 3:21-CV-00933 (JAM), 2025 WL 842278, at *1 (D. Conn. Mar. 18, 2025) ("The current request for the factual basis underlying the entirety of CLF's complaint is overly broad and in essence, is asking the designee to marshal the evidence and is thus improper.") (internal quotations omitted). Indeed, discovery is not complete and Amazon is in the best position to know about its acts of concealment, deceit, and fraud.

IV. CERTIFICATION OF GOOD-FAITH CONFERENCE

Pursuant to FRCP 26(c), counsel for CUL certifies that they met and conferred with Amazon on November 9, 2026, in an effort to resolve this dispute informally. *See Cullinane Decl.*, ¶¶ 3-7. Amazon declined to withdraw or modify Topic No. 4.

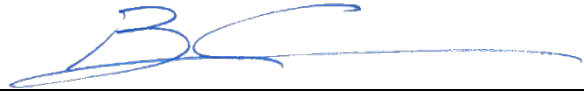
V. CONCLUSION

For the reasons stated above, Claimant China United Lines, Ltd. respectfully requests that the Presiding Officer issue an order precluding Topic of Examination No. 4 in its entirety.

Dated: January 11, 2026

Respectfully submitted,

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PROOF OF SERVICE

I, David P. Collins, hereby certify that on this 11th day of January, 2026, a copy of the foregoing **Motion for Protective Order** was served via email, on the following:

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